

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2111

By: Osburn

AS INTRODUCED

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 1105, as last amended by Section 64, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1105), which relates to the Oklahoma Vehicle License and Registration Act; modifying certain exception; removing defunct language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 1105, as last amended by Section 64, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1105), is amended to read as follows:

Section 1105. A. As used in the Oklahoma Vehicle License and Registration Act:

1. "Salvage vehicle" means any vehicle which is within the last ten (10) model years and which has been damaged by collision or other occurrence to the extent that the cost of repairing the vehicle for safe operation on the highway exceeds sixty percent (60%) of its fair market value, as defined by Section 1111 of this

1 title, immediately prior to the damage. For purposes of this  
2 section, actual repair costs shall only include labor and parts for  
3 actual damage to the suspension, motor, transmission, frame or  
4 unibody and designated structural components;

5 2. "Rebuilt vehicle" means any salvage vehicle which has been  
6 rebuilt and inspected for the purpose of registration and title;

7 3. "Flood-damaged vehicle" means a salvage or rebuilt vehicle  
8 which was damaged by flooding or a vehicle which was submerged at a  
9 level to or above the dashboard of the vehicle and on which an  
10 amount of loss was paid by the insurer;

11 4. "Unrecovered-theft vehicle" means a vehicle which has been  
12 stolen and not yet recovered;

13 5. "Recovered-theft vehicle" means a vehicle, including a  
14 salvage or rebuilt vehicle, which was recovered from a theft; and

15 6. "Junked vehicle" means any vehicle which is incapable of  
16 operation or use on the highway, has no resale value except as a  
17 source of parts or scrap and has an eighty percent (80%) loss in  
18 fair market value.

19 B. The owner of every vehicle in this state shall possess a  
20 certificate of title as proof of ownership of such vehicle, except  
21 those vehicles registered pursuant to Section 1120 of this title and  
22 trailers registered pursuant to Section 1133 of this title,  
23 previously titled by anyone in another state and engaged in  
24 interstate commerce, and except as provided in subsection M of this

1 section. Except for owners that possess an agricultural exemption  
2 permit pursuant to Section 1358.1 of Title 68 of the Oklahoma  
3 Statutes, the owner of an all-terrain vehicle or a motorcycle used  
4 exclusively off roads or highways in this state which is purchased  
5 or the ownership of which is transferred on or after July 1, 2005,  
6 and the owner of a utility vehicle used exclusively off roads and  
7 highways in this state which is purchased or the ownership of which  
8 is transferred on or after July 1, 2008, shall possess a certificate  
9 of title as proof of ownership. Any person possessing an  
10 agricultural exemption permit and owning an all-terrain vehicle or a  
11 motorcycle used exclusively off roads or highways in this state  
12 which is purchased or the ownership of which is transferred on or  
13 after July 1, 2008, shall possess a certificate of title as proof of  
14 ownership. Upon receipt of proper application information by such  
15 owner, Service Oklahoma shall issue an original or transfer  
16 certificate of title. Until July 1, 2008, any security interest in  
17 an all-terrain vehicle that attached and was perfected before July  
18 1, 2005, and that has not otherwise terminated shall remain  
19 perfected, and shall take priority over any subsequently perfected  
20 security interest in the same all-terrain vehicle, notwithstanding  
21 that a certificate of title may have been issued with respect to the  
22 same all-terrain vehicle on or after July 1, 2005, and that a lien  
23 may have been recorded on said certificate of title. There shall be  
24 eight types of certificates of title:

1        1. Original title for any motor vehicle which is not a  
2 remanufactured, salvage, unrecovered-theft, rebuilt, rebodied or  
3 junked vehicle;

4        2. Salvage title for any motor vehicle which is a salvage  
5 vehicle or is specified as a salvage vehicle or the equivalent  
6 thereof on a certificate of title from another state;

7        3. Rebuilt title for any motor vehicle which is a rebuilt  
8 vehicle;

9        4. Junked title for any motor vehicle which is a junked vehicle  
10 or is specified as a junked vehicle or the equivalent thereof on a  
11 certificate of title from another state;

12       5. Classic title for any motor vehicle, except a junked  
13 vehicle, which is twenty-five (25) model years or older;

14       6. Remanufactured title for any vehicle which is a  
15 remanufactured vehicle;

16       7. Unrecovered-theft title for any motor vehicle which has been  
17 stolen and not recovered; and

18       8. Rebodied title for any motor vehicle which is a rebodied  
19 vehicle.

20       Application for a certificate of title, whether the initial  
21 certificate of title or a duplicate, may be made to Service Oklahoma  
22 or any licensed operator. When application is made with a licensed  
23 operator, the application information shall be transmitted either  
24 electronically or by mail to Service Oklahoma by the licensed

1 operator. If the application information is transmitted  
2 electronically, the licensed operator shall forward the required  
3 application along with evidence of ownership, where required, by  
4 mail. Where the transmission of application information cannot be  
5 performed electronically, Service Oklahoma is authorized to provide  
6 postage paid envelopes to licensed operators for the purpose of  
7 mailing the application along with evidence of ownership, where  
8 required. Service Oklahoma shall upon receipt of proper application  
9 information issue an Oklahoma certificate of title. The  
10 certificates may be mailed to the applicant. Upon issuance of a  
11 certificate of title, Service Oklahoma shall provide the appropriate  
12 licensed operator with confirmation of such issuance.

13 C. 1. The application for certificate of title shall be upon a  
14 blank form furnished by Service Oklahoma, containing:

- 15 a. a full description of the vehicle,
- 16 b. the manufacturer's serial or other identification  
17 number,
- 18 c. the motor number and the date on which first sold by  
19 the manufacturer or dealer to the owner,
- 20 d. any distinguishing marks,
- 21 e. a statement of the applicant's source of title,
- 22 f. any security interest upon the vehicle, and
- 23 g. such other information as Service Oklahoma may  
24 require.

1        2. The application for a certificate of title for a vehicle  
2 which is within the last seven (7) model years shall require a  
3 declaration as to whether the vehicle has been damaged by collision  
4 or other occurrence and whether the vehicle has been recovered from  
5 theft and the extent of the damage to the vehicle. The declaration  
6 shall be made by the owner of a vehicle if:

7            a. the vehicle has been damaged or stolen,

8            b. the owner did or did not receive any payment for the  
9                loss from an insurer, or

10           c. the vehicle is titled or registered in a state that  
11                does not classify the vehicle or brand the title  
12                because of damage to or loss of the vehicle similar to  
13                the classifications or brands utilized by this state.

14        The declaration shall be based upon the best information and  
15 knowledge of the owner and shall be in addition to the requirements  
16 specified in paragraph 1 of this subsection. Service Oklahoma shall  
17 not issue a certificate of title for a vehicle which is subject to  
18 the provisions of this paragraph without the required declaration,  
19 completed and signed by the owner of the vehicle. Upon receipt of  
20 an application without the properly completed declaration, Service  
21 Oklahoma shall return the application to the applicant with notice  
22 that the title may not be issued without the required declaration.  
23 Nothing in this paragraph shall prohibit Service Oklahoma from  
24 recognizing the type of or brand on a title or other ownership

1 document issued by another state or the inspection conducted in  
2 another state and issuing the appropriate certificate of title for  
3 the vehicle.

4 3. The certificate of title shall have the following security  
5 features:

- 6 a. intaglio printing or security thread, with or without  
7 watermark,
- 8 b. latent images,
- 9 c. fluorescent inks,
- 10 d. micro print,
- 11 e. void background, and
- 12 f. color coding.

13 4. Each title issued pursuant to the provisions of the Oklahoma  
14 Vehicle License and Registration Act shall be color coded as  
15 determined by Service Oklahoma.

16 5. The certificate of title shall be of such size and design  
17 and color as Service Oklahoma may direct pursuant to the provisions  
18 of this section. The title shall be on colored paper or other  
19 material as designated by Service Oklahoma and be of such intensity  
20 or hue as will allow easy identification as to whether the title is  
21 an original title, a salvage title, a rebuilt title, remanufactured  
22 title, rebodied title or a junked title. The type of title shall be  
23 identified on the front of the certificate of title. The original  
24 title, rebuilt title, remanufactured title, an unrecovered-theft

1 title, rebodied title or classic title shall be identified by the  
2 word "Original", "Rebuilt", "Remanufactured", "Unrecovered Theft",  
3 "Rebodied" or "Classic" printed in the upper right quadrant of the  
4 certificate of title, in the space which is currently captioned  
5 "type of title". A rebodied title shall also identify on the front  
6 of the title the year, make and model of the originally manufactured  
7 vehicle which has been rebodied and display a notation that reads as  
8 follows: "This vehicle has been assembled with new major components  
9 licensed by the original manufacturer."

10 D. 1. To obtain an original certificate of title for a vehicle  
11 that is being registered for the first time in this state which has  
12 not been previously registered in any other state, the applicant  
13 shall be required to deliver, as evidence of ownership, a  
14 manufacturer's certificate of origin properly assigned by the  
15 manufacturer, distributor, or dealer licensed in this or any other  
16 state shown thereon to be the last transferee to the applicant upon  
17 a form to be prescribed and approved by Service Oklahoma. A  
18 manufacturer's certificate of origin shall contain:

- 19 a. the manufacturer's serial or other identification  
20 number,
- 21 b. date on which first sold by the manufacturer to the  
22 dealer,
- 23 c. any distinguishing marks including model and the year  
24 same was made,



- d. a statement of any security interests upon the vehicle, and
- e. such other information as Service Oklahoma may require.

2. The manufacturer's certificate of origin shall have the following security features:

- a. intaglio printing or security thread, with or without watermark,
- b. latent images,
- c. fluorescent inks,
- d. micro print, and
- e. void background.

E. In the absence of a dealer's or manufacturer's number, Service Oklahoma may assign such identifying number to the vehicle, which shall be permanently stamped, burned or pressed or attached into the vehicle, and a certificate of title shall be delivered to the applicant upon payment of all fees and taxes, and the remaining copies shall be permanently filed and indexed by Service Oklahoma. Service Oklahoma shall assign an identifying number to any rebuilt vehicle if the vehicle identification number displayed on the rebuilt vehicle does not accurately describe the vehicle as rebuilt. The licensed operator, at the time of inspection of the rebuilt vehicle pursuant to Section 1111 of this title, shall identify the make, model, and year for the body to accurately describe the

1 rebuilt vehicle. At the time of the inspection, an appropriate  
2 identifying number shall be permanently stamped, burned, pressed, or  
3 attached on the rebuilt vehicle. The assigned identifying number  
4 shall be recorded on the certificate of title for the rebuilt  
5 vehicle. The dealer's or manufacturer's vehicle identification  
6 number on the rebuilt vehicle shall be preserved in the computer  
7 files of Service Oklahoma for at least five (5) years.

8 F. When registering for the first time in this state a vehicle  
9 which was not originally manufactured for sale in the United States,  
10 to obtain a certificate of title, Service Oklahoma shall require the  
11 applicant to deliver:

12 1. As evidence of ownership, if the vehicle has not previously  
13 been titled in the United States, the documents constituting valid  
14 proof of ownership in the country in which the vehicle was  
15 originally purchased, together with a notarized translation of any  
16 such documents; and

17 2. As evidence of compliance with federal law, copies of the  
18 bond release letters for the vehicle issued by the United States  
19 Environmental Protection Agency and the United States Department of  
20 Transportation, together with a receipt issued by the Internal  
21 Revenue Service indicating that the applicable federal gas guzzler  
22 tax has been paid.

23 Service Oklahoma shall not issue a certificate of title for a  
24 vehicle which is subject to the provisions of this paragraph without

1 the required documentation from agencies of the United States and  
2 evidence of ownership. Upon receipt of an application without the  
3 required documentation, Service Oklahoma shall return the  
4 application to the applicant with notice that the certificate of  
5 title may not be issued without the required documentation. Nothing  
6 in this paragraph shall prohibit Service Oklahoma from issuing  
7 certificates of title for antique or classic vehicles not driven  
8 upon the public streets, roads, or highways, for mini-trucks  
9 registered pursuant to Section 1151.3 of this title, or for medium-  
10 speed electric vehicles.

11 G. When registering in this state a vehicle which was titled in  
12 another state and which title contains the name of a secured party  
13 on the face of the other state certificate of title, or such state  
14 certificate is being held by the secured party in that state or any  
15 other state, Service Oklahoma or the licensed operator shall  
16 complete a lien entry form as prescribed by Service Oklahoma. The  
17 owner of such vehicle shall file an affidavit with Service Oklahoma  
18 or the licensed operator stating that title to the vehicle is being  
19 held by a secured party, has not been issued pursuant to the laws of  
20 the state where titled, and that there is an existing lien or  
21 encumbrance on the vehicle. The current name and address of the  
22 secured party or lienholder shall also be stated in the affidavit.  
23 The form of the affidavit shall be prescribed by Service Oklahoma  
24 and contain any other information deemed necessary by Service

1 Oklahoma. A statement of the lien or encumbrance shall be included  
2 on the Oklahoma certificate of title and the lien or encumbrance  
3 shall be deemed continuously perfected as though it had been  
4 perfected pursuant to Section 1110 of this title. For completing  
5 the lien entry form and recording the security interest on the  
6 certificate of title, Service Oklahoma or the licensed operator  
7 shall collect a fee of Three Dollars (\$3.00) which shall be in  
8 addition to other fees provided by the Oklahoma Vehicle License and  
9 Registration Act. The fee, if collected by the licensed operator  
10 pursuant to this subsection, shall be retained by the licensed  
11 operator.

12 H. The charge for each certificate of title issued, except for  
13 junked titles as defined in paragraph 4 of subsection B of this  
14 section, shall be Eleven Dollars (\$11.00), which charge shall be in  
15 addition to any other fees or taxes imposed by law for such vehicle.  
16 One Dollar (\$1.00) of each such charge shall be deposited in the  
17 Oklahoma Tax Commission Reimbursement Fund through December 31,  
18 2022, and beginning January 1, 2023, it shall be deposited in the  
19 Service Oklahoma Reimbursement Fund. However, the charge shall not  
20 apply to any vehicle which is to be registered in this state  
21 pursuant to the provisions of Section 1120 or 1133 of this title and  
22 which was registered in another state at least sixty (60) days prior  
23 to the time it is required to be registered in this state. When an  
24 insurer requests a salvage or junk title in the name of the insurer

1 resulting from the settlement of a total loss claim and upon  
2 presentation of appropriate proof of loss documentation as required  
3 by Service Oklahoma, such transfer may be processed as one title  
4 transaction, without first requiring issuance of a replacement  
5 certificate of title in the name of the vehicle owner. The fee  
6 shall be Twenty-two Dollars (\$22.00). Two Dollars (\$2.00) of this  
7 fee shall be deposited in the Oklahoma Tax Commission Reimbursement  
8 Fund.

9 I. The vehicle identification number of a junked vehicle shall  
10 be preserved in the computer files of Service Oklahoma for a period  
11 of not less than five (5) years. The charge of junked titles as  
12 defined in paragraph 4 of subsection B of this section shall be Four  
13 Dollars (\$4.00). The fee remitted to the Tax Commission shall be  
14 deposited in the Oklahoma Tax Commission Reimbursement Fund through  
15 December 31, 2022, and beginning January 1, 2023, this fee shall be  
16 deposited in the Service Oklahoma Reimbursement Fund.

17 J. If a vehicle is sold to a resident of another state  
18 destroyed, dismantled, or ceases to be used as a vehicle, the owner  
19 shall immediately notify Service Oklahoma. Absent evidence to the  
20 contrary, failure to notify Service Oklahoma shall be prima facie  
21 evidence that the vehicle has been in continuous operation in this  
22 state.

23 K. If a vehicle is stolen, the owner shall immediately notify  
24 the appropriate law enforcement agency. Immediately after receiving

1 such notification, the law enforcement agency shall notify Service  
2 Oklahoma.

3 L. Except for all-terrain vehicles, utility vehicles and  
4 motorcycles used exclusively for off-road use, no title for an out-  
5 of-state vehicle, except any commercial truck or truck-tractor  
6 registered pursuant to Section 1120 of this title which is engaged  
7 in interstate commerce or any trailer or semitrailer registered  
8 pursuant to Section 1133 of this title which is engaged in  
9 interstate commerce, shall be issued without an inspection of such  
10 vehicle and payment of a fee of Four Dollars (\$4.00) for such  
11 inspection; provided, Service Oklahoma may enter into reciprocal  
12 agreements with other states for such inspections to be performed at  
13 locations outside the boundaries of this state for vehicles which:

14 1. Are offered for sale at auction;

15 2. Have been solely used as vehicles for rent under the  
16 ownership of a licensed motor vehicle dealer or a person engaged in  
17 the business of renting motor vehicles; or

18 3. Have not been registered in this or any other state for more  
19 than one (1) year.

20 The inspection shall include a comparison of the vehicle  
21 identification number on the vehicle with the number recorded on the  
22 ownership records and the recording of the actual odometer reading  
23 on the vehicle. An establishment engaged in vehicle rentals or  
24 leasing as defined or classified in the NAICS Manual under Industry

1 No. 532111 or 532112, shall be exempt from the inspection required  
2 pursuant to this subsection; provided, the establishment shall be  
3 required to submit payment of any fees required pursuant to this  
4 subsection when the title is issued. The four-dollar fee shall be  
5 collected by the licensed operator or Service Oklahoma when the  
6 title is issued. The licensed operator shall retain Two Dollars  
7 (\$2.00). The remaining Two Dollars (\$2.00) shall be deposited in  
8 ~~the Oklahoma Tax Commission Reimbursement Fund through December 31,~~  
9 ~~2022, and beginning January 1, 2023, this fee shall be deposited in~~  
10 ~~the~~ Service Oklahoma Reimbursement Fund.

11 Service Oklahoma may allow the inspection to be performed at a  
12 location out-of-state by another state's department of motor  
13 vehicles or state police.

14 M. No title for any out-of-state vehicle offered for sale at  
15 salvage pools, salvage disposal sales, or an auction, or by a dealer  
16 or a licensed automotive dismantler and parts recycler, shall be  
17 issued without an inspection to compare the vehicle identification  
18 number on the vehicle with the number recorded on the ownership  
19 record and to record the actual odometer reading on the vehicle.  
20 Upon request of the seller, person or entity conducting an auction,  
21 dealer or licensed dismantler, the inspection shall be conducted at  
22 the location or place of business of the sale, auction, dealer, or  
23 the dismantler. The inspection shall be conducted by any licensed  
24 operator or a duly authorized employee thereof; provided, if the

1 vehicle identification number on the vehicle offered for sale at  
2 salvage pools, salvage disposal sales or a classic or antique  
3 auction does not match the number recorded on the ownership record,  
4 the inspection may be conducted at the location of or place of  
5 business of such sale or auction by any state, county or city law  
6 enforcement officer. Service Oklahoma may enter into reciprocal  
7 agreements with other states for such inspections to be performed at  
8 locations outside the boundaries of this state for vehicles which:

- 9 1. Are offered for sale at auction;
- 10 2. Have been solely used as vehicles for rent under the  
11 ownership of a licensed motor vehicle dealer or a person engaged in  
12 the business of renting motor vehicles; or
- 13 3. Have not been registered in this or any other state for more  
14 than one (1) year.

15 The inspection shall be certified upon forms prescribed by Service  
16 Oklahoma. The name and other identification of the authorized  
17 person conducting the inspection shall be legibly printed or typed  
18 on the form. Prior to any inspection by any employee of a licensed  
19 operator, the licensed operator shall notify Service Oklahoma of the  
20 name and any other identification information requested by Service  
21 Oklahoma of the authorized person. A signature specimen of the  
22 authorized person shall be submitted to Service Oklahoma by the  
23 employing licensed operator. If the authorization to inspect  
24 vehicles is withdrawn or the employer-employee relationship is



1 terminated, the licensed operator, immediately, shall notify Service  
2 Oklahoma and return any remaining inspection forms to Service  
3 Oklahoma. The fee for the inspection shall be Four Dollars (\$4.00).  
4 The licensed operator shall retain Three Dollars (\$3.00) of the fee.  
5 Fees received by a licensed operator or an authorized employee  
6 thereof shall be handled and accounted for in the manner as  
7 prescribed by law for any other fees paid to or received by a  
8 licensed operator. Out-of-state vehicles brought into this state by  
9 a person licensed in another state to sell new or used vehicles to  
10 be sold within this state at a motor vehicle auction which is  
11 limited to dealer-to-dealer transactions shall not be required to be  
12 inspected, unless the vehicle is purchased by an Oklahoma dealer.  
13 Any person licensed in another state to sell new or used motor  
14 vehicles, who offers a motor vehicle for sale within this state at a  
15 motor vehicle auction which is limited to dealer-to-dealer  
16 transactions, shall not be within the definition of "owner" in  
17 Section 1102 of this title, for purposes of Section 1101 et seq. of  
18 this title.

19 N. A licensed motor vehicle dealer, upon payment of a fee of  
20 Fifteen Dollars (\$15.00), may reassign an out-of-state certificate  
21 of title to a used motor vehicle provided such dealer obtains the  
22 appropriate inspection form required by either subsection L or M of  
23 this section and attaches the form to the out-of-state certificate  
24 of title. Licensed operators shall be allowed to retain Two Dollars

1 and twenty-five cents (\$2.25) of the fee plus an additional Two  
2 Dollars (\$2.00) or Three Dollars (\$3.00) as provided in subsections  
3 L and M of this section for performance of the inspection. Two  
4 Dollars (\$2.00) of the fee shall be deposited in the Service  
5 Oklahoma Reimbursement Fund. An out-of-state vehicle which has been  
6 rebuilt shall be inspected pursuant to the provisions of Section  
7 1111 of this title. Service Oklahoma shall train licensed operators  
8 in interpreting vehicle identification numbers to assure that it  
9 accurately describes the vehicle and to detect rollback or  
10 alteration of the odometer. Failure of a licensed operator to  
11 inspect the vehicle and make the required notations shall be a  
12 misdemeanor punishable by a fine of not more than One Thousand  
13 Dollars (\$1,000.00) for the first offense and Five Thousand Dollars  
14 (\$5,000.00) for the second offense or subsequent offense, or by  
15 imprisonment in the county jail for not more than six (6) months, or  
16 by both such fine and imprisonment.

17 O. The ownership of any unrecovered vehicle which has been  
18 declared a total loss by an insurer because of theft shall be  
19 transferred to the insurer by an unrecovered-theft vehicle title;  
20 provided, the ownership of any such vehicle which has been declared  
21 a total loss by an insurer licensed by the Insurance Department of  
22 the State of Oklahoma and maintaining a multi-state motor vehicle  
23 salvage processing center in this state shall be transferred to the  
24 insurer by a salvage or an unrecovered-theft title without the

1 requirement of a visual inspection of the vehicle identification  
2 number by the insurer. Upon recovery of the vehicle, the ownership  
3 shall be transferred by an original title, salvage title, or junked  
4 title, as may be appropriate based upon an estimate of the amount of  
5 loss submitted by the insurer.

6 P. When an insurance company makes a total loss settlement on a  
7 total loss vehicle and the insurance company or a salvage pool  
8 authorized by the insurance company is unable to obtain the properly  
9 endorsed certificate of ownership or other evidence of ownership  
10 acceptable to Service Oklahoma within thirty (30) days following  
11 acceptance by the owner of an offer of an amount in settlement of a  
12 total loss, that insurance company or salvage pool, on a form  
13 provided by Service Oklahoma and signed under penalty of perjury,  
14 may request Service Oklahoma to issue the applicable salvage title  
15 for the vehicle. The request shall include information declaring  
16 that the requester has made at least two written attempts to obtain  
17 the certificate of ownership or other acceptable evidence of title.

18 Q. The owner of any vehicle which is incapable of operation or  
19 use on the public roads and has no resale value, except as parts,  
20 scrap, or junk, may deliver the certificate of title to the vehicle  
21 to Service Oklahoma for cancellation. Upon verification that any  
22 perfected lien against the vehicle has been released, the  
23 certificate of title shall be canceled without any fee, charge, or  
24 cost required from the owner. The vehicle identification numbers on

1 the certificates of title shall be preserved in the computer files  
2 of Service Oklahoma for at least five (5) years from the date of  
3 cancellation of the certificate of title. Service Oklahoma shall  
4 prescribe and provide an affidavit form to be completed by the owner  
5 of any vehicle for which the certificate of title is canceled. No  
6 title or registration shall subsequently be issued for a vehicle for  
7 which the certificate of title has been surrendered pursuant to this  
8 subsection. Service Oklahoma shall prescribe a form for the  
9 transfer of ownership of a vehicle for which the certificate of  
10 title has been canceled.

11 R. The owner of a vehicle which is not within the last ten (10)  
12 model years, not roadworthy and not capable of repair for operation  
13 or use on the roads and highways, or a vehicle which is being sold  
14 to a scrap metal dealer pursuant to Section 11-92 of Title 2 of the  
15 Oklahoma Statutes, shall transfer the vehicle only upon a  
16 certificate of ownership prescribed by Service Oklahoma, if the  
17 certificate of title to the vehicle is lost, has been canceled, or  
18 otherwise not available. The prescribed ownership form shall  
19 include the names and addresses of the buyer and seller, the driver  
20 license number or Social Security number of the seller, the make and  
21 model of the vehicle, and the public vehicle identification number.  
22 If there is no public vehicle identification number, the vehicle  
23 shall be inspected by a law enforcement officer to verify the  
24 absence of the number on the vehicle and the prescribed ownership

1 form shall include a signed statement, by such officer, verifying  
2 the absence of the number.

3 The certificate of ownership shall be completed in triplicate.  
4 The buyer and seller shall each retain a copy. Within thirty (30)  
5 days of the transaction, the seller shall submit one copy to Service  
6 Oklahoma or a licensed operator accompanied with a fee of Four  
7 Dollars (\$4.00). One Dollar (\$1.00) shall be retained by the  
8 licensed operator and Three Dollars (\$3.00) shall be deposited in  
9 the Oklahoma Tax Commission Reimbursement Fund in the State Treasury  
10 through December 31, 2022, and beginning January 1, 2023, this fee  
11 shall be deposited in the Service Oklahoma Reimbursement Fund.

12 Upon receipt of the certificate, Service Oklahoma shall verify  
13 that any perfected lien upon the vehicle has been released. If the  
14 lien is not released, Service Oklahoma shall mail notice of the  
15 transfer to the lienholder at the lienholder's last-known address.  
16 If a certificate of title has been issued, it shall be canceled and  
17 the vehicle identification number shall be preserved in the computer  
18 of Service Oklahoma for at least five (5) years. The buyer of the  
19 vehicle may not be sued and shall not be liable for monetary damages  
20 to the lienholder, however, the vehicle shall be subject to a valid  
21 repossession by a lienholder.

22 S. Service Oklahoma shall notify the chief administrative  
23 officer of the agency or department responsible for issuing motor  
24 vehicle certificates of title in each state in the United States of

1 the types of motor vehicle certificate of title effective in  
2 Oklahoma on and after January 1, 1989.

3 T. When registering for the first time in this state a  
4 remanufactured vehicle which has not been registered in any other  
5 state since its remanufacture, before issuing a certificate of  
6 title, Service Oklahoma shall require the applicant to deliver a  
7 statement of origin from the remanufacturer.

8 U. If a vehicle is sold to a foreign buyer pursuant to the  
9 provisions of the Automotive Dismantlers and Parts Recycler Act, the  
10 licensed seller shall stamp the title with: "EXPORT ONLY.  
11 NONTRANSFERABLE IN THE UNITED STATES." The licensed seller shall  
12 supply Service Oklahoma the title number, the vehicle identification  
13 number and the foreign buyer's bid identification number on a form  
14 prescribed by Service Oklahoma. Service Oklahoma shall cancel the  
15 title, and the vehicle identification number shall be preserved in  
16 the computer files of Service Oklahoma for a period of not less than  
17 five (5) years.

18 V. Service Oklahoma shall not be considered a necessary party  
19 to any lawsuit which is instigated for the purpose of determining  
20 ownership of a vehicle, wherein Service Oklahoma's only involvement  
21 would be to issue title, and the court shall issue an order  
22 dismissing Service Oklahoma from the pending action. In the event  
23 no other party or lienholder can be identified as to ownership or  
24

1 claim, Service Oklahoma shall accept an affidavit of ownership from  
2 the party claiming ownership and issue proper title thereon.

3 SECTION 2. This act shall become effective November 1, 2025.  
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